

Court No. - 39

Case :- WRIT - C No. - 27622 of 2020

Petitioner :- Kitab Shree

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, Shri Baleshwar Chaturvedi, learned counsel representing the respondent no.2 and the learned Standing Counsel for the respondent nos.1 & 3.

The instant petition has been filed with the following relief:

i. Issue a writ, order or direction in the nature of certiorari quashing impugned demand notice dated 22.8.2019 issued by respondent no.2 i.e. Executive Engineer (Prescribed Authority), Vidyut Vitran Khand-III, Dakshinanchal Vidyut Vitran Nigam Limited, Saifai, Etawah against the petitioner (Annexure-1 to the writ petition);

ii. Issue a writ, order or direction in the nature of mandamus directing the respondent nos.2 & 3 not to implement the procedure of impugned demand notice dated 22.8.2019 issued by respondent no.2 i.e. Executive Engineer (Prescribed Authority), Vidyut Vitran Khand-III, Dakshinanchal Vidyut Vitran Nigam Limited, Saifai, Etawah against the petitioner;

At this stage, learned counsel for the petitioner has confined his prayer that he is ready to pay the due amount in easy installments sought to be recovered from the petitioner by the respondent Corporation.

Per contra Shri Baleshwar Chaturvedi, learned counsel for the respondent no.2 contends that a surprise inspection was made in the premises of the petitioner on 25.1.2019 and the petitioner was found involved in theft of electricity. Thereafter provisional notice dated 13.3.2019 has been served with the petitioner through registered post. As no objection was filed against the provisional notice, the same has been treated as final assessment. Consequently, demand notice dated 22.8.2019 has been issued against the petitioner by respondent no.2, which does not suffer from any manifest error of law.

He further submits that the petitioner has a remedy to approach before the respondent no.2 under Clause 6.14 of Electricity Supply Code, 2005 for the redressal of his grievance.

In this view of the matter, we dispose of the writ petition with the direction to the petitioner to approach the respondent no.2 under Clause 6.14 of Electricity Supply Code, 2005 by making a representation within two weeks who in turn shall consider the grievance of the petitioner and shall pass an appropriate order in accordance with law within four weeks thereafter.

In the meantime, no coercive action shall be taken against the petitioner

pursuant to the impugned demand notice dated 22.8.2019 issued by respondent no.2.

Order Date :- 11.1.2021

M. Tariq